

HOUSE BILL 1065

By Sherrell

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 1 and Title 49, Chapter 6, relative to
school safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-804(a), is amended by
designating the existing language as subdivision (1) and adding the following new subdivision:

(2)

(A) Each district-wide school safety team and building-level school safety team shall include in its district-wide school safety plan or building-level school safety plan the process by which administrators of the LEA or school must notify parents and legal guardians of students enrolled in the LEA or school of emergencies and incidents of violence occurring on the grounds of the LEA or school, as well as credible threats of violence made against the LEA, school, or students or employees of the LEA or school, regardless of whether the parent's or legal guardian's student was involved in, a witness to, a participant in, or a target of, the emergency, incident of violence, or credible threat of violence.

(B) The process required in subdivision (a)(2)(A) must specify the manner of communication and a general timeline for when parents and legal guardians must be notified. It is the intent of the general assembly that parents and legal guardians be notified as early as possible without interfering with any disciplinary, investigatory, or prosecutorial function.

(C) Any disclosure made by an administrator of an LEA or school pursuant to its district-wide school safety plan or building-level school safety plan

for purposes of this subdivision (a)(2) must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant state and federal privacy laws.

SECTION 2. Tennessee Code Annotated, Section 49-1-225(b), is amended by deleting "§ 49-6-804(a)" and substituting instead "§ 49-6-804(a)(1)".

SECTION 3. Tennessee Code Annotated, Section 49-6-805(2), is amended by deleting the subdivision and substituting instead the following:

(2)

(A) Policies and procedures for communication with law enforcement officials in the event of emergencies and incidents of, or threats of, violence; and

(B)

(i) Policies and procedures by which an LEA or school must notify parents and legal guardians of students enrolled in the LEA or school of emergencies and incidents of violence occurring on the grounds of the LEA or school, as well as credible threats of violence made against the LEA, school, or students or employees of the LEA or school, regardless of whether the parent's or legal guardian's student was involved in, a witness to, a participant in, or a target of, the emergency, incident of violence, or credible threat of violence;

(ii) The process established in the template must require the LEA or school to specify the manner of communication and a general timeline for when parents and legal guardians must be notified. It is the intent of the general assembly that parents and legal guardians be notified as

early as possible without interfering with any disciplinary, investigatory, or prosecutorial function; and

(iii) The template must direct that all disclosures made by an administrator of an LEA or school pursuant to its district-wide school safety plan or building-level school safety plan for purposes of this subdivision (2)(B) must comply with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g); § 10-7-504; the Data Accessibility, Transparency and Accountability Act, compiled in chapter 1, part 7 of this title; and all other relevant state and federal privacy laws;

SECTION 4. Tennessee Code Annotated, Section 49-6-2701, is amended by deleting subsection (d) and substituting instead the following:

(d)

(1) The threat assessment team shall document all behaviors and incidents deemed to pose a risk to school safety or that result in intervention and shall provide the information to the LEA or public charter school, as applicable. The LEA or public charter school must consider the information when reviewing and developing a district-wide or building-level school safety plan.

(2) The LEA's director of schools or the director of the public charter school, as applicable, or the respective director's designee, must notify parents and legal guardians of students enrolled in the LEA or public charter school of incidents deemed to pose a risk to school safety or that result in intervention that are reported to the LEA or public charter school pursuant to subdivision (d)(1), if the incident would require parental notification pursuant to the LEA's or public charter school's district-wide school safety plan or building-level school safety plan. It is the intent of the general assembly that parents and legal guardians be

notified as early as possible without interfering with any disciplinary, investigatory, or prosecutorial function.

(3) All information documented pursuant to subdivision (d)(1) must be documented in accordance with, and all disclosures made by an LEA or public charter school pursuant to subdivision (d)(2) must comply with, the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g), § 10-7-504, and all other relevant state and federal privacy laws.

SECTION 5. Section 4 of this act takes effect upon becoming a law, the public welfare requiring it. All other sections of this act take effect January 1, 2026, the public welfare requiring it, and apply to district-wide school safety plans and building-level school safety plans in effect on or after that date.